

PASSED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 31-001

**Amendments to Title 2, Chapter 5, Articles C and E of the Chickasaw Nation Code
(Personnel Rules and Regulations)**

WHEREAS, in accordance with Article VII, Section 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, these amendments are designed to allow day-to-day matters of personnel management to be governed by tribal employment policies, rather than have the intricate details of personnel management addressed in the Chickasaw Nation Code, and

WHEREAS, the attached amendments revise Title 2 of the Chickasaw Nation Code to clarify and enable efficient and consistent management of all Chickasaw Nation employees, whether they are employed within the Executive, the Legislative or the Judicial Departments.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby repeals Articles C and E of Chapter 5, Title 2 of the Chickasaw Nation Code in their entirety, and further incorporates the following as Title 2, Chapter 5, Article C, with Article E to be designated as "Reserved":

"SECTION 2-503.1 TITLE.

This article shall be known as the 'Chickasaw Nation Personnel Act of 2013.'

SECTION 2-503.2 SCOPE AND AUTHORITY.

A. The leadership of each of the three Departments of government of the Chickasaw Nation, as defined in Article V, Section 1 of the Chickasaw Constitution, have the authority to promulgate policies and procedures applicable to the employees of that respective Department of the Chickasaw Nation. The Governor has recommended the legislative adoption and

codification of the provisions listed in this Act in order to promote fairness, transparency and accessibility for all employees.

B. This Act shall apply to all employees of the Chickasaw Nation that are covered by the merit system. The merit system shall be applicable to all regular employees, but does not include elected officials or appointed members of the Governor's staff. Non-merit employees include, but are not limited to, elected officials, those employees holding appointed positions, and those working in positions supervised or appointed directly by the Governor and/or the Lieutenant Governor.

C. This Act does not apply, and conveys no benefits associated with employment, to anyone retained as an independent contractor by either the Nation or by any separately incorporated entities, regardless of whether the entity is owned or managed by the Nation or its subsidiaries.

SECTION 2-503.3 **ADOPTION OF POLICIES.**

All tribal employment policies related to the management of Chickasaw Nation employees are adopted and established by the Executive, Legislative or Judicial Departments of the Chickasaw Nation. Each Department will share tribal employment policies with the other to enable accurate administration of those policies. All tribal employment policies will remain available to all employees for review in a manner and format that will enable reasonable access by employees.

SECTION 2-503.4 **MERIT AND UNLAWFUL DISCRIMINATION.**

A. The employment and compensation of employees shall be based upon merit, ability, and fairness.

B. The Chickasaw Nation shall not unlawfully discriminate against applicants for employment. Notwithstanding this provision, preference for employment shall be given to Chickasaws and qualified Indian applicants.

SECTION 2-503.5 **GENERAL EMPLOYMENT POLICIES.**

A. The leadership of each Department of the Chickasaw Nation government, as defined in Section 2-503.02(A), determines the organizational structure of that respective Department and establishes tribal employment policies for the management of their respective tribal employees.

- B. Each employee shall be given the authority necessary to perform his or her duties.
- C. The duties and responsibilities of every position shall be established in writing. Employees will be expected, at a minimum, to perform the duties specified in their job descriptions, as well as other duties as assigned.
- D. Each employee's work performance shall be evaluated annually, to the extent practical. This process shall be administered through tribal employment policies.
- E. The standard work week of the Chickasaw Nation shall be 40 hours per week for full time employees. Provided, the actual working hours for employees may vary based upon the requirements of each position.
- F. Issues of tardiness and nepotism shall be determined according to tribal employment policies.
- G. Issues of holidays, including the dates on which holidays occur and the conditions upon which an employee shall be eligible to receive holiday pay, shall be determined according to tribal employment policies.
- H. Issues pertaining to employee ethics shall be determined according to tribal employment policies, or any other applicable tribal law.

SECTION 2-503.6**LEAVE WITH PAY.**

All matters involving annual, sick, maternity, medical, administrative, military, enforced and education leave will be determined according to tribal employment policies.

SECTION 2-503.7**OTHER FORMS OF LEAVE.**

All matters involving leave for court and jury service, administrative and professional leave, and furloughs shall be handled according to tribal employment policies.

SECTION 2-503.8**SELECTION AND MANAGEMENT OF APPLICANTS.**

All matters involving the selection of applicants, employee orientation periods, employee classification, and employee conduct shall be determined according to tribal employment policies.

SECTION 2-503.9**PERSONNEL MANAGEMENT.**

All matters involving personnel actions, promotions, demotions, transfers, new positions, terminations, suspensions, reductions in force, resignations, and assignments to special duty shall be determined according to tribal employment policies.

SECTION 2-503.10**TERMINATIONS AND APPEALS.**

All matters involving terminations and appeals shall be determined according to tribal employment policies. Merit employees have the right to appeal terminations through an administrative appeals process to be established through tribal employment policies.

SECTION 2-503.11**PERFORMANCE REVIEWS.**

All matters involving employee performance reviews shall be determined according to tribal employment policies.

SECTION 2-503.12**COMPENSATION, BENEFITS AND GRIEVANCES.**

All matters involving employee compensation, outside employment honorariums, fringe benefits, and grievances, shall be determined according to tribal employment policies.

SECTION 2-503.13**CONFLICTS OF INTEREST.**

All matters involving conflicts of interest and allegations thereof shall be determined according to tribal employment policies or applicable tribal law.

SECTION 2-503.14**SEVERABILITY AND PREEMPTION.**

A. If any of the provisions of this Act are ruled by the Chickasaw Judicial Department to be in violation of the Chickasaw Constitution or are otherwise found to be invalid, then such provisions shall be stricken from this Act and the remainder of the Act shall continue to be in full force and effect.

B. For the purposes of this Act, if any provision of this Act conflicts with any other section of the Chickasaw Nation Code, whether such conflicting section was enacted before or after the passage of this Act, the provision of this Act shall control and be binding.

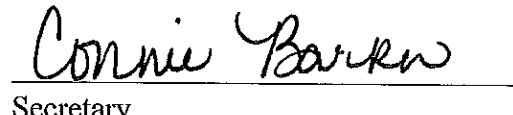
SECTION 2-503.15SOVEREIGNTY.

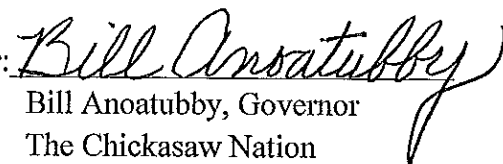
A. Nothing contained in this Act shall be construed to waive or otherwise diminish the inherent sovereign rights of the Chickasaw Nation or any of its Departments including, but not limited to, the right of sovereign immunity in the Chickasaw Nation courts or any other court.

B. Nothing contained in this Act shall be construed to limit either the inherent or delegated powers of self-government of the Chickasaw Nation as a federally recognized tribal government.”

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on November 15, 2013, by a vote of 13 ayes, 0 nays, and 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

NOV 19 2013
Date



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Explanation: This Resolution allows day-to-day matters of personnel management to be governed by tribal employment policies rather than addressing the intricate details of personnel management through tribal law. It provides that all employees of the Executive, Legislative or Judicial Departments of the Chickasaw Nation are included in the scope of this Act. However, the Executive, Legislative and Judicial Departments each retain the right to adopt existing tribal employment policies or to develop their own employment policies not otherwise in conflict with this Act.

Presented by: Legislative Committee